

25LBCV01930 25LBCV01930

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-10

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Case Number: 25LBCV01930 Hearing Date: September 10, 2026 Dept: S27

1. Background

Facts

Plaintiff, Timothy Hunter filed

this action against Defendant, Long Beach Memorial Medical Center for damages arising out of alleged medical malpractice on 7/01/25.

The Court heard an OSC re: proof of

service on 9/16/25, and Plaintiff failed to appear. The Court continued the matter to 10/29/25

and also set an OSC re: dismissal for failure to prosecute for the same date

and time. Plaintiff failed to appear on

10/29/25, and the Court dismissed the case.

2. Motion

to Vacate Dismissal

a.

Relief Sought by Plaintiff

On 4/14/26, Plaintiff filed this

motion to vacate the dismissal, contending it was entered as a result of his attorney's mistake or excusable neglect in connection with staffing challenges at the law firm.

The dismissal was entered without

any statutory or other authority for dismissing the action. CCP §583.420(a)(1) permits the Court to dismiss an action if the summons and complaint are not served within two years after the action is filed. §583.410 also

permits the Court to dismiss an action if the case is not brought to trial within two years after filing. There are various other statutes that permit dismissal of an action, none of which apply here. Pursuant to Lyons v. Wickhorst (1986) 42 Cal.3d 911, 915-917, the Court's powers to dismiss absent a statutory basis are extremely limited, and can only be applied in sham actions or where a delay of less than the statutory period has been prejudicial to the other party. Because the dismissal was entered without statutory or other basis, it is void and the Court vacates the dismissal.

b. Future
Hearings

Plaintiff has not, to date, filed proof of service of the summons and complaint on Defendant.

The Court sets an OSC re: proof of service for October 14, 2026, 8:30 a.m.